

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cheyanne Ralph	Team: Squad #02	CCRB Case #: 201804503	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 05/30/2018 7:50 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/30/2019	Precinct: 46		
Date/Time CV Reported Wed, 05/30/2018 8:15 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/06/2018 11:09 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Ian Gallagher	31919	954838	046 PCT
2. SGT Peter Congalosi	1438	934678	046 PCT
3. An officer			046 PCT
4. POM Davit Osmanovic	18417	955283	046 PCT
5. POM Richard Cruz	12598	950537	046 PCT
6. Officers			046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Ian Gallagher	Discourtesy: Police Officer Ian Gallagher spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Richard Cruz	Discourtesy: Police Officer Richard Cruz spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Ian Gallagher	Abuse: Police Ian Gallagher entered § 87(2)(b) in the Bronx.	C . Exonerated
D . POM Davit Osmanovic	Abuse: Police Officer Davit Osmanovic entered § 87(2)(b) in the Bronx.	D . Exonerated
E . POM Richard Cruz	Abuse: Police Officer Richard Cruz searched § 87(2)(b) in the Bronx.	E . Unsubstantiated
F . Officers	Discourtesy: Officers spoke discourteously to § 87(2)(b)	F . Officer(s) Unidentified
G . An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	G . Officer(s) Unidentified
H . POM Ian Gallagher	Abuse: Police Officer Ian Gallagher refused to provide his name to § 87(2)(b)	H . Unsubstantiated
I . POM Ian Gallagher	Off. Language: Police Officer Ian Gallagher made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	I . Unsubstantiated
J . SGT Peter Congalosi	Abuse: Sergeant Peter Congalosi forcibly removed § 87(2)(b) to the hospital.	J . Exonerated

Case summary

On May 30, 2018, § 87(2)(b) filed this complaint with the Internal Affairs Bureau via telephone. On June 6, 2018, the Civilian Complaint Review Board (CCRB) received this complaint under IAB Log #2018-21582 (Board Review 12).

On May 30, 2018, at approximately 7:50 a.m., § 87(2)(b) called 911 and reported that she had been poisoned by a male she had met online and was having difficulty breathing. Police Officer Ian Gallagher, Police Officer Davit Osmanovic, Police Officer Richard Cruz, and Sergeant Peter Congolasi of the 46th Precinct responded to § 87(2)(b)'s residence, at § 87(2)(b), in the Bronx along with Emergency Medical Technicians (EMTs) (Board Review 01). When they arrived, § 87(2)(b) was evaluated by the EMTs but indicated that she did not wish to go to the hospital. Police Officer Gallagher allegedly said, "No, you are going to the fucking hospital" (**Allegation A: Discourtesy-Word**; § 87(2)(g)). Police Officer Cruz allegedly said, "No detective is going to come out here for this shit" (**Allegation B: Discourtesy-Word**; § 87(2)(g)). § 87(2)(b) in response, exited the ambulance and walked back into her apartment. Police Officer Gallagher and Police Officer Osmanovic followed her and Police Officer Gallagher allegedly said, "Don't close that fucking door. We are going to kick that fucking door in," (**within Allegation A**) and both officers entered the apartment behind § 87(2)(b) (**Allegation C: Abuse of Authority-Entry**, § 87(2)(g)). **Allegation D: Abuse of Authority-Entry**, § 87(2)(g).

Inside the apartment, Police Officer Cruz allegedly opened § 87(2)(b)'s medicine cabinet in her kitchen, took all of her medicine bottles out of the cabinet and poured the contents of the bottles onto the table and said, "Are you sure you did not take too much of them?" (**Allegation E: Abuse of Authority- Search of Premises**; § 87(2)(g)). An unidentified officer allegedly said to § 87(2)(b) "We don't give a fuck. We will drag your ass out of here" (**Allegation F: Discourtesy-Word**; § 87(2)(g)). **Allegation G: Abuse of Authority-Threat of force**, § 87(2)(g)). § 87(2)(b) told the officers that they were disrespecting their shield and the unidentified officer allegedly said, "Shut the fuck up" (**within Allegation F**). Police Officer Gallagher allegedly refused to provide his name to § 87(2)(b) (**Allegation H: Abuse of Authority-Refusal to provide name**; § 87(2)(g)). § 87(2)(b) asked Police Officer Cruz to get her a shirt and her wig, and an unidentified officer allegedly said that they "wasted enough time on this shit" (**within Allegation F**). As she was being escorted out of her apartment, Police Officer Gallagher allegedly said, "We are going to take his ass to § 87(2)(b)" (**Allegation I: Offensive Language-Gender identity**; § 87(2)(g)). § 87(2)(b) was taken to the § 87(2)(b) (**Allegation J: Abuse of Authority- Forcible removal to the Hospital**; § 87(2)(g)).

While inside of the ambulance, § 87(2)(b) began telling Police Officer Gallagher about her family and Police Officer Gallagher allegedly said, "You think I give a fuck about your family? You think I give a fuck about you?" (**within Allegation A**). § 87(2)(b) replied, "Well if you had a conscious you would care." Police Officer Gallagher allegedly said, "Shut the fuck up" (**within Allegation A**). § 87(2)(b) said "I don't want to go to the hospital. I do not want to walk home like this. Police Officer Gallagher replied, "I do not give a fuck" (**within Allegation A**). Once she arrived at § 87(2)(b), § 87(2)(b) refused medical attention and left.

No video footage was found of this incident.

Allegation (A) Discourtesy: Police Officer Ian Gallagher spoke discourteously to § 87(2)(b)

Allegation (B) Discourtesy: Police Officer Richard Cruz spoke discourteously to § 87(2)(b)

Allegation (I) Offensive Language: Police Officer Ian Gallagher made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on June 19, 2018, and she provided a follow-up telephone statement on August 14, 2018 (Board Review 02). A telephone statement was provided by § 87(2)(b)'s building superintendent, § 87(2)(b) on July 20, 2018, (Board Review 04) and from § 87(2)(b) of Citywide Ambulance on August 24, 2018 (Board Review 08). Police Officer Gallagher and Police Officer Osmanovic were interviewed at the CCRB on August 15, 2018. Sergeant Peter Congolasi was interviewed at the CCRB on December 18, 2018. Police Officer Richard Cruz was interviewed at the CCRB on December 28, 2018.

§ 87(2)(b) stated that on the date of incident she was smoking hookah when she invited an unidentified male she had met online to her home. § 87(2)(b) believed this male poisoned her hookah because she immediately felt dizzy and her mouth was numb shortly after he arrived. The male also removed § 87(2)(b)'s shirt and § 87(2)(b) called 911 for police assistance. § 87(2)(b) met Police Officer Osmanovic, Police Officer Gallagher, Police Officer Cruz, and the EMTs outside of her apartment. The EMTs checked § 87(2)(b)'s blood pressure and told her that her blood pressure was high. § 87(2)(b) maintained that she felt fine and asked to be checked again. Police Officer Gallagher in response said, "No, you are going to the fucking hospital." § 87(2)(b) replied, "Okay, can I put some clothes on? I can't go to the hospital like this." § 87(2)(b) then got out the ambulance and said, "I'm not going anywhere. Why aren't you asking me about the guy? You did not ask me for any information. He went that way; he did not leave that much long ago." Police Officer Cruz replied, "Listen, no detective is going to come out here for this shit." § 87(2)(b) in response ran or walked quickly back into her apartment.

As she walked back to her apartment, Police Officer Gallagher was directly behind § 87(2)(b) and said, "Don't close that fucking door. We are going to kick that fucking door in." Police Officer Gallagher then followed behind § 87(2)(b) into her apartment. Inside the apartment, An officer said, "We are going to take his ass to § 87(2)(b)." § 87(2)(b) could not say which officer made this specific statement but noted that Police Officer Gallagher continuously referred her to as a man during the incident. Once she was escorted to the ambulance with Police Officer Gallagher, § 87(2)(b) began telling him about her family. Police Officer Gallagher said, "You think I give a fuck about your family? You think I give a fuck about you?" § 87(2)(b) replied, "Well if you had a conscience, you would care." Police Officer Gallagher said, "Shut the fuck up." § 87(2)(b) replied, "I don't want to go to the hospital. I do not want to walk home like this." Police Officer Gallagher said, "I do not give a fuck."

Police Officer Gallagher stated that on the date of incident he and Police Officer Osmanovic received a radio run for an assault in progress for a poisoned female at § 87(2)(b)'s residence. When Police Officer Gallagher arrived at the location, the EMTs were already on scene and were

engaging with § 87(2)(b) outside of the building. As Police Officer Gallagher and Police Officer Osmanovic approached them, Police Officer Gallagher heard § 87(2)(b) tell the EMTs that she smoked a device and there was poison inside of it. At some point after Police Officer Gallagher heard § 87(2)(b) say that she was poisoned, he asked her what had happened. § 87(2)(b) explained what had happened and the EMTs in response told § 87(2)(b) that she had to go into the ambulance. She complied with their request, and went into the ambulance with them. Police Officer Gallagher and Police Officer Osmanovic remained outside of the ambulance. Police Officer Gallagher could not hear any conversation between § 87(2)(b) and the EMTs inside of the ambulance, and denied saying “No, you are going to the fucking hospital.”

After speaking with the EMTs, § 87(2)(b) exited the ambulance and stated that she did not want to go to the hospital. § 87(2)(b) then walked towards her apartment and Police Officer Gallagher and Police Officer Osmanovic followed her inside. Police Officer Gallagher could not recall if the EMTs also followed. § 87(2)(b) never tried to close the door on officers or prevent them from entering, and Police Officer Gallagher and Police Officer Osmanovic had no issues getting into the apartment. Police Officer Gallagher denied saying, “Don’t close that fucking door. We are going to kick that fucking door in.”

Police Officer Gallagher stated that while inside of the ambulance on their way to the hospital, § 87(2)(b) was taking a lot, but he could not remember any statements she made. He also could not remember if she ever mentioned her family. Police Officer Gallagher denied saying, “You think I give a fuck about your family? You think I give a fuck about you?” He also did not say, “Shut the fuck up” in response to § 87(2)(b) saying that he should care. Police Officer Gallagher denied saying, “I do not give a fuck” in response to § 87(2)(b) stating that she did not want to walk home from the hospital. He never heard Police Officer Cruz or any other officer say, “Listen, no detective is going to come out here for this shit.” Police Officer Gallagher denied ever referring to § 87(2)(b) as a man during this encounter and or hearing any other officer do so.

Police Officer Osmanovic corroborated Police Officer Gallagher’s account in that when they arrived on scene, § 87(2)(b) was speaking with the EMTs and claimed that she had been poisoned by a man she did not know. Police Officer Osmanovic had only been on scene for a few minutes when the EMTs told § 87(2)(b) that she had to get into the ambulance so that they could check her out, and § 87(2)(b) voluntarily entered the ambulance. Police Officer Osmanovic and Police Officer Gallagher did not enter the ambulance and he believed they stood outside of the ambulance with the ambulance door open. Police Officer Osmanovic could not hear any conversation between the EMTs and § 87(2)(b) while they were inside of the ambulance. Police Officer Osmanovic denied hearing Police Officer Gallagher say, “You are going to the fucking hospital.” He also denied hearing Police Officer Gallagher say, “Don’t close that fucking door. We are going to kick that fucking door in.” He never heard Police Officer Cruz or any other officer say, “Listen, no detective is going to come out here for this shit.” Police Officer Osmanovic denied referring to § 87(2)(b) as a male and denied saying, “We are going to take his ass to § 87(2)(b)” or hearing any officer do so.

Sergeant Congolasi and Police Officer Cruz both stated that they responded to the scene because Police Officer Gallagher and Police Officer Osmanovic had requested Sergeant Congolasi because § 87(2)(b) was refusing to go to the hospital. Both Police Officer Cruz and Sergeant

Congolasi said that when they arrived at the location, § 87(2)(b) Police Officer Gallagher, Police Officer Osmanovic, and the EMTs were already inside § 87(2)(b)'s apartment. Sergeant Congolasi did not hear any officer tell § 87(2)(b) "You're going to the fucking hospital" and was never made aware that Police Officer Gallagher said that he was going "kick her fucking door in." Sergeant Congolasi observed Police Officer Cruz speaking to § 87(2)(b) and heard Police Officer Cruz explain to her that she had to go to the hospital based on what she said. Sergeant Congolasi denied hearing Police Officer Cruz say, "No detective is going to come out here for this shit." He also denied hearing any other officer make this statement to § 87(2)(b). Sergeant Congolasi denied referring to § 87(2)(b) as a male or with male pronouns, and denied hearing any officer do so.

Police Officer Cruz could not remember hearing any officer use any profanity while speaking with § 87(2)(b). He stated that when he arrived on scene, he entered § 87(2)(b)'s apartment, and § 87(2)(b) was having a conversation with everyone in the room about how she was poisoned. Police Officer Cruz could not recall how he responded to this information but denied saying, "No detective is going to come out here for this shit." Police Officer Cruz denied ever referring to § 87(2)(b) as a man and stated that he only addressed her as "she or ma'am" throughout the entire interaction. He could not remember any officer or EMS personnel referring to § 87(2)(b) as a man and denied hearing any officer say, "We are going to take his ass to § 87(2)(b)." ."

§ 87(2)(b) could not recall this incident.

§ 87(2)(g)
[REDACTED]

Allegation (C) Abuse of Authority: Police Officer Ian Gallagher entered § 87(2)(b), in the Bronx.

Allegation (D) Abuse of Authority: Police Officer Davit Osmanovic entered § 87(2)(b), in the Bronx.

It is undisputed that once § 87(2)(b) exited the ambulance and entered her apartment, Police Officer Gallagher and Police Officer Osmanovic followed her in.

EVENT § 87(2)(b) shows that § 87(2)(b) called 911 and stated that a male she met on a website put something in her hookah, took off her shirt, and she was feeling confused and was having difficulty breathing (Board Review 01).

Aided #§ 87(2)(b), prepared by Police Officer Gallagher, states that § 87(2)(b) called

EMS/Police Department and reported that she consumed poison through inhalation from a water cooled smoking device (bong). § 87(2)(b)

§ 87(2)(b) stated that she was mistaken and did not consume any poison and did not want to go to the hospital. At which time, § 87(2)(b) determined that § 87(2)(b) was to be removed to hospital for immediate care due to the condition of § 87(2)(b) and her claims of consuming poison. § 87(2)(b) removed to § 87(2)(b) by a registered ambulance (Board Review 05).

According to People v. Rodriguez, 77 A.D.3d 280 (2010), officers may enter a private residence without a warrant if they have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property, and if there is some reason approximating probable cause to associate the emergency with the area or place being entered (Board Review 03).

§ 87(2)(g)

Allegation (E) Abuse of Authority: Police Officer Richard Cruz searched § 87(2)(b) in the Bronx.

§ 87(2)(b) stated that once the officers were in her apartment, Police Officer Cruz went into her medicine cabinet and took all of her medicine out of the cabinet, including her testosterone blockers and poured them all onto the table. Police Officer Cruz allegedly touched the pills and said, “Are you sure you didn’t take too much of them?”

Police Officer Cruz stated that neither he nor any officer on scene searched around the apartment and there was never a concern that § 87(2)(b) took any pills as § 87(2)(b) never mentioned she took any pills that day. Police Officer Cruz saw cigarettes in an ash tray, but he could not recall where he saw these cigarettes. Police Officer Cruz only looked at the cigarettes to see if it was tampered with, and to see if there was any poisoning in the vicinity. Police Officer Cruz never touched it and did not ask § 87(2)(b) about any pills. Police Officer Cruz denied opening any cabinets and denied removing pill bottles from a kitchen cabinet.

Police Officer Gallagher could not describe § 87(2)(b)'s apartment and stated that the living room and kitchen was the extent of what he saw when he entered. During that time, Police Officer Gallagher denied seeing any officer searching any cabinets in the apartment, and did not see any officer empty the contents of pill bottles onto a table.

Police Officer Osmanovic denied seeing any officer remove pill bottles from any cabinets and empty the contents onto a table in the apartment.

Sergeant Congolasi stated that at no point during the interaction did he instruct any officer to find out what § 87(2)(b) was poisoned by, and denied seeing any officer opening any cabinets or remove any pill bottles. He also denied seeing any officer opening pill bottles and emptying the contents onto a table.

§ 87(2)(g)

Allegation (F) Abuse of Authority: Officers spoke discourteously to § 87(2)(b)

Allegation (G) Abuse of Authority: An officer threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated that when the EMT supervisor arrived on scene and told her that she had to go to the hospital, she requested a police sergeant to respond. It was then an officer said, “Well we don’t give a fuck. We will drag your ass out of here.” § 87(2)(b) could not recall which officer made this statement. She also stated that during her interaction with the officers she informed them that she had family members who were police officers and told them that they were disrespecting their badge. An officer in response said, “Shut the fuck up.” § 87(2)(b) did not know which officer said this and could not provide any context as to when the alleged statement was made.

After she was handcuffed, § 87(2)(b) asked the officers for clothes. Police Officer Cruz in response dumped all of the clothes out of § 87(2)(b)’s bag and asked her which item she wanted. § 87(2)(b) told Police Officer Cruz that the clothes he dumped out were all dirty and asked him to go into her drawer, grab a shirt, and grab her wig. Police Officer Cruz refused to do so and an officer said that they “wasted on enough time on this shit.” § 87(2)(b) did not know which officer said this.

Police Officer Osmanovic, Sergeant Congolasi, Police Officer Gallagher, and Police Officer Cruz all denied saying “Well we don’t give a fuck. We will drag your ass out of here, or “Shut the fuck up” or the word shit while speaking to § 87(2)(b) or hearing other officers do so.

Police Officer Cruz could not recall § 87(2)(b) mentioning that she had any other family members who were also law enforcement officials and did not say “Shut the fuck up” in response to her expressing that information. He also denied hearing any officer say, “Shut the fuck up.” Police Officer Cruz stated that he could not recall if § 87(2)(b) asked to get additional clothing items, or if officers offered to get additional clothing items for her, but he and another officer, who he could not recall at the time of his CCRB interview, were looking on § 87(2)(b)’s bed and in the vicinity of her bed for something she could put on as her clothes were scattered all over. § 87(2)(b) referenced where the clothing items could be found, but when officers went to that location, they did not find anything she was comfortable wearing, and when they went to the second location they found a shirt or sweater in a pile of clothes. Police Officer Cruz did not say, “We wasted enough time on this shit,” and denied hearing any officer make this statement.

§ 87(2)(g)

Allegation (H) Abuse of Authority: Police Officer Ian Gallagher refused to provide his name to § 87(2)(b)

§ 87(2)(b) stated that at some point, while inside the apartment, she asked Police Officer Gallagher for his name and Police Officer Gallagher covered his name tag in response and asked § 87(2)(b) what she needed his name for. Police Officer Gallagher ultimately did not provide the requested information. However, § 87(2)(b) had already viewed it.

Police Officer Gallagher could not recall if § 87(2)(b) ever requested his name during this incident. Police Officer Osmanovic could not recall if § 87(2)(b) ever requested the names or badge numbers of any officer during this incident. Sergeant Congolasi and Police Officer Cruz did not hear § 87(2)(b) request the name and shield of any officer.

§ 87(2)(g)

Allegation (J) Abuse of Authority: Sergeant Peter Congolasi forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) stated that at some point while still inside her apartment, she stood up and told the officers that she was going to go to the hospital with them and asked them to bring her phone. Police Officer Gallagher then grabbed § 87(2)(b)'s arms and placed her in handcuffs with Sergeant Congolasi's assistance.

Sgt. Congolasi stated that it was his decision to remove § 87(2)(b) to the hospital based on the statements she had said in the presence of EMS and after speaking with EMT Lieutenant who informed him that § 87(2)(b) had to go to the hospital because she was claiming she was poisoned by this individual. § 87(2)(b) also mentioned aliens, which led Sergeant Congolasi to believe that she could have needed additional psychiatric help.

EVENT § 87(2)(b) shows that § 87(2)(b) called 911 and stated that a male she met on a website put something in her hookah, took off her shirt, and she was feeling confused and was having difficulty breathing (Board Review 01).

Aided #§ 87(2)(b), prepared by Police Officer Gallagher states that § 87(2)(b) called EMS/Police Department and reported that she consumed poison through inhalation from water cooled smoking device (bong). § 87(2)(b)

§ 87(2)(b) § 87(2)(b) stated that she was mistaken and did not consume any poison and did not want to go to the hospital. At which time, § 87(2)(b) determined that § 87(2)(b) was to be removed to hospital for immediate care due to the condition of § 87(2)(b) and her claims of consuming poison. § 87(2)(b) removed to § 87(2)(b) by a registered ambulance (Board Review 05).

Patrol Guide Procedure 221-13 states that a person who appears to be mentally ill or temporarily deranged and is conducting them himself in a manner which a police officer reasonable believes is likely to result in serious injury to himself or others may be removed to the hospital for medical treatment (Board Review 06).

Patrol Guide Procedure 216-01 outlining general AIDED case procedures notes that officers shall cooperate with ambulance/hospital personnel in every reasonable manner when responding to medical emergencies (Board Review 07).

§ 87(2)(g)
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 09).
- Police Officer Ian Gallagher has been a member of service for 5 years and has been a subject in one CCRB complaint and five allegations, of which four were substantiated:
 - 201505032 involved substantiated allegations of a stop, a frisk, a search, and a retaliatory summons. The Board recommended formalized training and the NYPD imposed formalized training for the stop, search and retaliatory summons and no disciplinary action for the frisk. § 87(2)(g)
- Police Officer Davit Osmanovic has been a member of service for five years and this is the first CCRB complaint to which he has been a subject.
- Police Officer Richard Cruz has been a member of service for seven years and has been a subject in one CCRB complaint and one allegation which was not substantiated. § 87(2)(g)

- Sergeant Peter Congolasi has been a member of service for fourteen years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

§ 87(2)(b)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of March 5, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (Board Review 10).
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 02

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date